

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS AND A
COMMISSION ON PROFESSIONAL COMPETENCE FOR THE
LOS ANGELES UNIFIED SCHOOL DISTRICT
STATE OF CALIFORNIA**

In the Matter of the Dismissal of:

DONALD LOPERENA,

A Permanent Certificated Employee,

Respondent.

OAH No. 2024110033

DECISION

This matter was heard by videoconference on March 17 through 20, 2025, before a Commission on Professional Competence for the Los Angeles Unified School District (Commission). The Commission consisted of Ray Alcala, Mark Hanke, and Julie Cabos Owen, Administrative Law Judge (ALJ) with the Office of Administrative Hearings (OAH), State of California. The Los Angeles Unified School District (District) was represented by Brian Davenport, Assistant General Counsel II, with the Office of the General Counsel for the District. Donald Loperena (Respondent) appeared and was represented by Jason Wojciechowski, Attorney at Law with Bush Gottlieb.

Pursuant to a Protective Order, dated March 18, 2025, Exhibit K was placed under seal to protect confidential information.

Testimony and documentary evidence was received. The matter was submitted for decision on March 20, 2025.

The Commission on Professional Competence considered the matter in executive session. After due consideration of the entire record, the Commission makes the following factual findings, legal conclusions, and order.

FACTUAL FINDINGS

Parties and Jurisdiction

1. At all relevant times, Respondent was a permanent certificated employee of the District, assigned as a physical education (PE) teacher at John F. Kennedy High School (JFKHS).

2. On January 12, 2024, Respondent received a Notice of Unsatisfactory Acts and Notice of Suspension.

3. On August 28, 2024, Francisco J. Serrato, Ed.D., in his official capacity as Chief Human Resources Officer for the District, filed the Statement of Charges (SOC) against Respondent.

4. On September 12, 2024, Respondent was served with the following documents: a Notice of Board of Education Intention to Dismiss and Placement on Immediate Unpaid Suspension (Notice of Intent to Dismiss), dated September 11, 2024; a copy of the SOC; a blank Request for Hearing and Notice of Defense; and copies of the relevant Education Code and Government Code sections. The Notice of Intention to Dismiss informed Respondent the District's Board of Education intended to dismiss him in 30 days unless he requested a hearing.

5. On about September 25, 2024, Respondent filed and served a Notice of Defense requesting a hearing.

District Policies and Training

6. Respondent has been trained on and is familiar with the substance of District policies including the following: Resolution to Enforce the Respectful Treatment of all Persons (Exhibit 19); Code of Conduct with Students (Exhibit 20); Employee Code of Ethics (Exhibit 21); Child Abuse and Neglect Reporting Requirements (Exhibit 22); Non-Discrimination And Anti-Harassment (Including Sexual Harassment) Policy And Complaint Procedure (Exhibit 23); Abolition of Corporal Punishment (Exhibit 24); Discipline Foundation Policy: Multi-Tiered Systems of Support for Behavior and Social-Emotional Well-Being using Positive Behavior Interventions and Supports/Restorative Practices (Exhibit 25); Bullying and Hazing Policy (Exhibit 26); and Teaching and Learning Framework (Exhibit 28).

7. Respondent is also familiar with the California Standards for the Teaching Profession published by the California Commission on Teacher Credentialing. (Exhibit 27.)

8. Respondent acknowledged he must comply with District policies and California standards. He affirmed he strives to do so.

Witnesses at Hearing

9. The SOC alleges Respondent engaged in misconduct witnessed by several JFKHS female students: K [REDACTED] A., M [REDACTED] A., N [REDACTED] M., D [REDACTED] A., K [REDACTED] A., M [REDACTED] A., and L [REDACTED] S. (The students are identified by first names and last initials to protect their privacy.) (N [REDACTED] M. is misidentified as "N [REDACTED] M." in the SOC.)

10. K█████ A., D█████ A., K█████ A., and M█████ A. did not testify at the hearing.

11. M█████ A. and N█████ M. testified at the hearing. For reasons set forth below, their testimony was occasionally vague or inconsistent with other evidence. Additionally, their original written statements (discussed below) were tainted by their potential motivation to preempt negative consequences of cheating in Respondent's running class. Consequently, M█████ A.'s and N█████ M.'s credibility as witnesses was diminished.

12. L█████ S. testified at the hearing. As set forth below, her testimony was vague and inconsistent. Consequently, L█████ S.'s credibility was diminished.

13. E█████ M. testified at the hearing. She was not one of the students identified in the SOC. However, she was friends with N█████ M. and K█████ A., who were in Respondent's Period 1 PE class with her, as well as D█████ A. and K█████ A. Although E█████ M. presented as a more candid witness (admitting she and other students cheated in Respondent's running class), her responses were often vague and somewhat inconsistent. Additionally, her original written statement was tainted by her potential motivation to preempt negative consequences of cheating in Respondent's running class. Consequently, E█████ M.'s credibility was somewhat lessened.

14. Respondent testified at the administrative hearing in an earnest and forthright manner. While Respondent was motivated to preserve his job, his testimony was not discredited. Rather, his testimony on certain counts was corroborated by fellow JFKHS PE department faculty members, Kevin Kanemura, Christian Carbajal, and Leslie Thompson. Thus, Respondent presented as a generally credible witness.

District's Investigation

15. On May 3, 2023, K [REDACTED] A., M [REDACTED] A., N [REDACTED] M., and E [REDACTED] M. went to JFKHS Assistant Principal (AP) Natalie Petrossian's office to collectively report Respondent had touched female students in a way that made them feel uncomfortable. AP Petrossian had the girls provide separate written statements about their complaints.

16. In their May 3, 2023 written statements, E [REDACTED] M. and K [REDACTED] A. reported Respondent touched K [REDACTED]'s upper arm while she was using the pull-down machine in the weight room (Exhibits 30 and 36); M [REDACTED] A. and N [REDACTED] M. reported Respondent touched M [REDACTED] A.'s waist for a moment while they were playing volleyball so he "could move himself" (Exhibits 33 and 34); N [REDACTED] M. reported Respondent "position[ed]" her while she played goalie during soccer by "grabbing [her] lower shoulder [and] standing really close to [her] from behind [and] his hands would slide up [and] down [her] arms"(Exhibit 34); and N [REDACTED] M. also reported Respondent calls his female students "my girls." (*Ibid.*)

17. In the weeks following May 3, 2023, AP Petrossian interviewed many additional students regarding Respondent's behavior in class. AP Petrossian did not interview Respondent or any other faculty members about the allegations.

18. In the interim, at 8:15 a.m., on May 4, 2023, Principal Oscar Vazquez and AP Sim Kim met with Respondent. During that meeting, Principal Vazquez informed Respondent that a female student, K [REDACTED] A., reported Respondent inappropriately touched her. Principal Vazquez reminded Respondent not to interfere with the investigation and to maintain appropriate behavior.

19. Respondent was shocked and crushed by the allegation he had inappropriately touched a female student. As he was walking back to his office, Respondent recalled that he had caught several students cheating in class the day before.

20. At 11:08 a.m., on May 4, 2023, Respondent sent Principal Vazquez an email discussing the allegation just leveled against him about touching a female student. Respondent's email stated, in pertinent part:

[A]s you can imagine, I was fuming inside. I pride myself on my ethics and professional prudence to avoid any such embarrassing accusation, however, we live in a broken world. I am sorry you have to deal with this as well but please know I have no hard feelings for you "doing your job".

It didn't come to mind this morning but K [REDACTED] and a number of other students were caught cheating on the jog/walk yesterday and all were given zeros. I am wondering if this accusation is a retaliation in hopes of preventing a call home or just due to the frustration of being caught. Just food for thought.

Either way, I am in full support and of course will fully cooperate in this investigation. . . .

(Exhibit 13, p. A153.)

21. Meanwhile, AP Petrossian continued to obtain written statements from students. Two students in Respondent's Period 3 class reported Respondent told students they had slutty mouths. On May 4, 2023, V [REDACTED] P. wrote, "[Respondent] called a group of girls sluty [*s/c*] mouths because they were say[ing] bad words" (Exhibit 40). On May 11, 2023, M [REDACTED] A. wrote, "[Respondent] said I had a 'slutty mouth' when he heard me curse this one time." (Exhibit 45.) (M [REDACTED] A.'s statement was redacted to show only her first name and middle initial. Consequently, Exhibit 45 is mis-identified as "M [REDACTED] L.'s" statement.)

22. On May 8, 2023, AP Petrossian took written statements from five students, male and female. On May 12, 2023, she took written statements from three female students. The eight students reported Respondent is respectful, and they never heard him say anything inappropriate or saw him touch anyone inappropriately. (Exhibits B through I.)

23. On May 9, 2023, AP Petrossian sent an email to Principal Vazquez informing him that she had concluded her investigation. She noted the original allegations regarding Respondent's touching K [REDACTED] A. in the weight room, N [REDACTED] M. on the shoulders during soccer, and M [REDACTED] A. on her waist during volleyball. She also reported additional allegations that Respondent told a group of female students they had slutty mouths when they used bad language. (Exhibit 14.)

24. On May 11, 2023, Respondent received a Notice of Reason for Preliminary Reassignment Pending Investigation (May 11 Notice). The May 11 Notice documented a conference that day between Dr. Debra Bryant, Administrator of Operations/Division Head and Respondent as follows:

During the conference, I informed you that the temporary removal from your worksite is due to an allegation of misconduct involving physical/non-physical contact with a student that is not age-appropriate or within the scope of the employee's responsibilities or duties. There is an ongoing investigation concerning this allegation.

In accordance with Board resolution, the District will make every attempt to complete all full investigations within 120 working days of the date the administrative case is cleared by law enforcement and opened. . . .

You will be notified of the results of the investigation and any impact on your reassigned status within 15 workdays following the completion of the investigation.

(Exhibit 15.)

25. At the May 11, 2023 conference, Respondent was not informed of the specific allegations against him.

26. AP Petrossian continued gathering statements from students about Respondent's behavior.

27. On May 12, 2023, AP Petrossian took additional written statements including the following: P [REDACTED] S. reported Respondent "[would] sit with his legs very wide open" but "nothing was shown" when he sits that way. (Exhibit 46); and L [REDACTED] S. (from Respondent's Period 3 class) reported Respondent "[would] tell us we have 'slutty mouths' if we say bad words." (Exhibit 47.) L [REDACTED] S. also reported Respondent

"told my friend to run laps so she could get a 'summer body'" and "one time when I asked a question, he made a weird joke and said "don't have to ask daddy." (*Ibid.*)

28. On May 12, 2023, S [REDACTED] R. wrote, "I do find it a little bit weird that he touches people on the shoulder or lower back but it is very rare, and I don't think that it comes out in that kind of way." (Exhibit 48.) S [REDACTED] R. provide specifics about the touching (date, student involved), and she did not indicate whether she personally witnessed the touching or whether she learned about it through other students.

29. On May 18, 2023, K [REDACTED] A., N [REDACTED] M., and E [REDACTED] M., returned to AP Petrossian's office and provided additional statements reporting that Respondent held his iPad near his crotch when requiring female students click on their assigned numbers to record the number of laps they were running. (Exhibits 32, 35, and 37.) AP Petrossian could not recall how she was first informed of the iPad allegations, whether from the three students or another source.

30. On October 30 and November 2, 2023, AP Petrossian met with Respondent, his representative, and other District administrators. This conference was the first time Respondent was informed of the specific allegations against him. The conference discussion was memorialized in a November 2, 2023 memorandum.

31. Respondent denied touching students, making inappropriate comments to students, sitting with his legs wide open, and holding his iPad on his crotch area while requiring students to touch the iPad. Respondent reiterated the concern he voiced on May 4, 2023, that on the prior day, K [REDACTED] A. and other students were caught cheating and were told that they would be getting calls home the following evening.

Respondent's Alleged Misconduct

METHOD OF HOLDING IPAD

32. Respondent's PE classes incorporated running/jogging/walking laps (lap runs), typically once per week. This was a department-wide activity for all PE classes, so several PE classes shared the running track on the same day. Most teachers chose Wednesday as their lap run day because that day afforded the most teacher supervision to prevent students from eloping through the field's gates.

33. Kevin Kanemura has taught PE at JFKHS for 26 years, and he has been the PE Department Chair for eight years. He frequently observed Respondent teaching his classes.

34. Christian Carbajal has coached at JFKHS for 10 years, and she taught PE there for eight years.

35. Leslie Thompson has taught PE at JFKHS since 2015.

36. Mr. Kanemura, Ms. Carbajal, and Mr. Thomson testified credibly. They all confirmed the PE classes frequently shared the football field, the running track, and the gymnasium, and they are often right next to each other while engaged in PE activities including lap runs.

37. Respondent typically jogged on the track with the students. From this position, he monitored the track for the other teachers who remained stationed at the gates. Sometimes he monitored one of the gates or remained sitting due to injury.

38. Respondent liked jogging on the track with students, rather than remaining in one place to checkmark students' handheld cards as they went by.

Consequently, Respondent had his friend create an iPad app that allowed students tap as they completed each lap. Respondent typically kept his iPad hanging on the fence using a protective case, harness, and clip.

39. On the iPad app, each time a student completed a lap, they would tap their assigned rollcall number. All students' numbers were visible on the screen. The app would not allow a student to tap their number again until 40 seconds had lapsed. At the end of the running session, the app showed each student's average lap time.

40. Respondent discovered students attempting to cheat the app. Students first tried sneaking outside the field gate and periodically popping back in to tap the iPad, but Respondent quickly stopped that. The more prevalent method students used to cheat involved arranging for their friends to complete laps in staggered manner. The complicit students would tap both their number and their friend's number at the same time so the app would register two laps for every lap the students completed. Respondent warned his students to be honest because he knew how long it took them to complete their laps. Respondent recalled cheating was rare. When he discovered students attempting to cheat, he would sit and hold the iPad to confirm students were accurately recording their laps.

41. The SOC alleges, "While seated as the students ran laps on an outdoor track, Respondent had female students lean-over him to scroll through a list of names to log each lap on an iPad he kept between his legs resting against his crotch." (Exhibit 1, p. A2.) Respondent denies this allegation.

42. Respondent testified he typically held the iPad by resting his elbows on his knees, leaning a bit forward, and presenting the iPad with his hands outstretched. Respondent's hands grasped both sides of the iPad, holding it in portrait orientation

(vertical, not horizontal), with the screen facing upward. Students came by to tap their numbers on the screen. During lulls, Respondent rotated the iPad (screen downward) to prevent the sun from overheating it.

43. Respondent denied ever resting the iPad on his lap or anywhere else on his body while students were tapping their numbers. Respondent denied that female students were treated differently when tapping the iPad. He maintained that he held the iPad in the same position for everyone. Respondent also noted that no student or fellow teacher had ever expressed discomfort or told him he should hold his iPad differently. Respondent further noted that, in his Period 1 class, one of his students had a 1-1 aid who was typically right next to Respondent when he was holding the iPad, and the aid never expressed any concerns.

44. Respondent recalled that, on May 3, 2023, the day K█████ A., M█████ A., N█████ M., and E█████ M. went to AP Petrossian's office, he had caught them and other Period 1 students cheating during the lap run. That day, Respondent ran on the track with the students, and his iPad was hanging on the fence. When he viewed the statistics on his iPad at the end of the run, he noticed students who had been going very slowly or intermittently sitting on the benches had logged as many laps as Respondent. Respondent asked if anyone wanted to admit to cheating, and nobody came forward. Respondent noted the names of the students who had cheated in his roll book, and he told his Period 1 students he would be calling the parents of the cheating students the next day.

45. At hearing, N█████ M., E█████ M., and M█████ A. testified about Respondent's method of holding his iPad.

46. N [REDACTED] M. confirmed that Respondent typically had his iPad hanging on the gate and would run on the track with students. She also confirmed that, after Respondent caught students cheating, he would sit with his iPad. N [REDACTED] M. recalled Respondent caught students cheating in the Spring semester, and he mentioned that he would call the parents of students he found cheating.

47. N [REDACTED] M. testified that Respondent would sit with the iPad on his lap, sometimes with it resting higher up on his thigh. She recalled she had to reach over to the iPad and click on her number and "had to get close to him to do it." She confirmed her May 3, 2023 written statement was accurate in alleging Respondent kept the iPad "directly on his crotch area and his body was very open and spread," and "when there was boys around, . . . his body wasn't as open compared to when it was only girls pressing their numbers on the iPad." (Exhibit 35.)

48. N [REDACTED] M. did not include the iPad accusation in her original May 3, 2023 written statement. She testified she does not recall what prompted her and her friends to go to AP Petrossian's office on May 3, 2023. She could not recall if that was the day Respondent said he would call students' parents. She also could not recall what prompted her to provide the iPad information in a second written statement on May 18, 2023, or why she did not include that information in her May 3, 2023 statement.

49. At hearing, E [REDACTED] M. corroborated the testimony of Respondent, Mr. Kanemura, and Ms. Carbajal that, when Respondent's class was on the track running laps, there were other classes and multiple teachers there. However, E [REDACTED] M. testified contrary to the collective recollections of Respondent, N [REDACTED] M., Mr. Kanemura, and Ms. Carbajal that Respondent typically ran laps with the students and only occasionally sat with his iPad. Instead, E [REDACTED] M. recalled Respondent typically sat down during lap runs and only occasionally had his iPad hanging on the gate to run on the track with

students. Nevertheless, she confirmed that, "when a lot of cheating was going on, he would stay by the iPad, and other times he would run with [the students]."

50. E M. testified that Respondent would sit with the iPad resting between his spread legs at his crotch, "right up against his body, flat." She later clarified Respondent's legs were spread but the iPad was resting on his legs. E M. initially stated Respondent was not holding the iPad, but then clarified he was "maybe holding it partially but not holding it up." She later testified, "Sometimes he would hold it on the sides." E M. recalled all students had to reach over and touch their number.

51. E M. recalled students would click on each other's numbers to cheat on lap runs. She admitted she did so with her friends once. She recalled that during the Spring semester, Respondent told the class he would call the parents of the students he caught cheating.

52. M A. did not include any iPad accusation in her May 3, 2023 written statement, nor was she one of the students to provide a written statement about it on May 18, 2023. She explained it was "not the first thing that [she] could think of that really made [her] feel uncomfortable."

53. M A. confirmed Respondent sometimes ran with the class, while the iPad hung on the fence, and sometimes sat with the iPad. E M. testified that Respondent would sit with the iPad "balanced to stay on his lap." According to M A., Respondent was not holding the iPad, but it was "directly on his lap," and "on his stomach." She recalled the whole class had to touch their numbers on the iPad as it rested on his lap.

54. N [REDACTED] M., E [REDACTED] M., and M [REDACTED] A.'s descriptions of where Respondent held his iPad was vague, ranging from between his legs, on his crotch, on his lap, on his thighs, and on his stomach. Additionally, their written statements and subsequent testimony are tainted by their potential motivation to preempt negative consequences of cheating in Respondent's running class. Consequently, N [REDACTED] M., E [REDACTED] M., and M [REDACTED] A.'s testimony was less credible than Respondent's regarding how he held his iPad.

55. Given the forgoing, the allegation in the SOC that "had female students lean-over him to scroll through a list of names to log each lap on an iPad he kept between his legs resting against his crotch" was not proven by a preponderance of the evidence.

SITTING DURING STUDENTS' PUSH-UPS

56. Every year, the PE department classes undergo state-required physical fitness testing. One of the tested areas is push-ups.

57. The SOC alleges, "While female students did push-ups, Respondent sat directly in front of them with his legs splayed open where each student's head was in close proximity to his crotch." (Exhibit 1, p. A2.) Respondent denies this allegation.

58. Mr. Kanemura and Ms. Carbajal corroborated Respondent's testimony that the PE teachers share facilities for fitness testing, and they often combine classes to get fitness testing done. Ms. Carbajal confirmed that a PE teacher is usually not alone with students during fitness testing.

59. Respondent testified that, when he performed push up testing, mats were laid out in the gymnasium for the students to lie on, and he would be on an

adjacent mat. Respondent confirmed the student's chin touched the push-up tester, as a radio called out the instructions, "Down! Up!" If the student's chin did not touch the tester, they would "grab their card and they are done." Respondent similarly monitored trunk lifts from an adjacent mat, using a ruler or yard stick to measure how far up a student lifted their chin. Respondent denied sitting in a chair to monitor pushups or trunk lifts.

60. Mr. Kanemura and Ms. Carbajal testified credibly that they never saw Respondent sitting inappropriately around students during fitness testing.

61. J. P. provided a written statement to AP Petrossian on May 18, 2023, stating, ""In PE class, during push up test, the pe teacher would spread his legs (man spread) when the girls would do their push-up. The push up test was on a mat layed [sic] in front him, in which was close to the chair he sat at." (Exhibit 39.) However, J. P. did not testify at the hearing. Consequently, her written statement was admitted only as administrative hearsay to supplement or explain other admissible evidence.¹

62. N. M., E. M., M. A., and L. S. testified, but they did not recall much about Respondent's sitting during push-ups.

¹The term "administrative hearsay" is a shorthand reference to the provisions of Government Code section 11513, subdivision (d), under which hearsay evidence that is objected to, and is not otherwise admissible, may be used to supplement or explain other evidence but may not, by itself, support a finding. It may be combined with other evidence to provide substantial evidence sufficient to support a finding. (*Komizu v. Gourley* (2002) 103 Cal.App.4th 1001.)]

63. N [REDACTED] M. did not provide any written statement about Respondent's sitting during push-ups. She testified that she does not recall Respondent's behavior during push-ups. She only recalled Respondent "sitting in his chair in front of [students]" mats during trunk lifts. During trunk lifts, Respondent would sit with his legs spread and "kind of open" and take notes about how far the students' "necks would reach." N [REDACTED] M. did not include any allegation about Respondent's behavior during trunk lifts in her written statements, and she does not recall why she omitted this information.

64. E [REDACTED] M. did not provide any written statement about Respondent's sitting during push-ups, and she did not testify about Respondent's behavior during push-ups. E [REDACTED] M. only recalled trunk lifts, not pushups. She recalls that, during trunk lifts, Respondent sat in front of the student with his "legs spread," and the student "had to lift [their] head from there." She recalled Respondent was about three to five feet away from the student. She did not mention trunk lifts in her written statements because it was not her "main concern about what was bothering" her.

65. M [REDACTED] A. testified that, during push-ups, Respondent was seated in front of the students, but she could not recall if his legs were together or open. She did not include any information about Respondent's behavior during push-ups in her written statement because it did "not make [her] feel uncomfortable." She did not recall Respondent sitting in front of her for trunk lifts.

66. L [REDACTED] S. did not provide any written statement about Respondent's sitting during push-ups. She recalls having to do push-ups in front of Respondent, and he was sometimes seated and sometimes standing. L [REDACTED] S. recalled Respondent's legs were open when he was seated about six inches away from her face, but she could not recall if they were open a lot or a little.

67. N [REDACTED] M. and E [REDACTED] M. could not recall Respondent's behavior during push-ups, and M [REDACTED] A.'s and L [REDACTED] S.'s testimony was vague. While M [REDACTED] A. recalled Respondent sitting during push-ups, she could not confirm that his legs were spread, but his positioning did not make her feel uncomfortable. L [REDACTED] S. recalled Respondent sometimes sitting during push-ups but could not recall if his legs were spread open a lot. Consequently, N [REDACTED] M., E [REDACTED] M., M [REDACTED] A.'s, and L [REDACTED] S.'s testimony, supplemented by J [REDACTED] P.'s written statement, were less credible than Respondent's in establishing how he was positioned during push-up testing.

68. Given the foregoing, the allegation in the SOC that, "While female students did push-ups, Respondent sat directly in front of them with his legs splayed open where each student's head was in close proximity to his crotch" was not proven by a preponderance of the evidence.

COMMENTS TO STUDENTS

69. The SOC alleges Respondent made the comment in class, "Run so you have a summer body." (Exhibit 1, p. A3, line 4.) Respondent denies making this specific comment, although he does recall making a similar type of comment that he asserts was taken out of context.

70. In her May 12, 2023 written statement, L [REDACTED] S. alleged Respondent "told my friend to run laps so she could get a 'summer body.'" (Exhibit 47.)

71. At hearing, L [REDACTED] S. testified that, while running laps, Respondent told L [REDACTED] S.'s friend to "run to get a summer body." L [REDACTED] S. believed Respondent was talking about her friend's figure and losing weight to "get a nice body," and L [REDACTED] S. felt uncomfortable. L [REDACTED] S. did not believe Respondent was talking about himself. L [REDACTED] S. initially testified she was running behind Respondent and her friend when

Respondent made the comment. She later stated she was "right next to him," but not part of his conversation with her friend, J [REDACTED].

72. There is no evidence that J [REDACTED] complained about Respondent's comment or provided any statement corroborating L [REDACTED] S.'s assertion.

73. Respondent denies telling any student to "run to get a summer body." He insisted the jokes he told in class were about himself, and the summer body comment was aimed at himself. He recalls being injured for six weeks and putting on extra weight, and when starting a run, he would call, "Let's go! We gotta get those summer bodies!" Respondent insisted it was a general motivational statement not directed at any student.

74. L [REDACTED] S.'s testimony was vague and less credible than Respondent's recollection and explanation. Consequently, the allegation in the SOC that Respondent told a student to "run so you have a summer body" was not proven by a preponderance of the evidence.

75. The SOC alleges Respondent made the comment, "You don't have to ask daddy," in reference to himself. (Exhibit 1, p. A4, line 12.) Respondent denies this allegation.

76. In her May 12, 2023 written statement, L [REDACTED] S. alleged, "One time when I asked him a question he made a weird joke and said, 'don't have to ask daddy.'" (Exhibit 47.)

77. At hearing, L [REDACTED] S. testified that one time she asked Respondent to get water during a lap run, and he said, "You don't have to ask daddy or mommy." This testimony differed from her May 12, 2023 written statement, wherein she only noted

the "ask daddy" portion of Respondent's purported comment. L [REDACTED] S. testified she excluded the words "or mommy" from her written statement because Respondent "separated" that part of his statement and waited "quite a bit" before he said, "or mommy."

78. Respondent does not recall ever telling a student "You don't have to ask daddy." Respondent maintained that he did not allow students to get water by themselves or they would "disappear." Instead, they would all go to the water fountains together.

79. L [REDACTED] S.'s elimination of the phrase "or mommy" from her written statement calls into question the reliability of the information she has provided. Additionally, her testimony in other areas was found to be vague and to have characterized Respondent's comments out of their intended context. Consequently, L [REDACTED] S.'s recollection of Respondent's alleged comment lacks credibility.

80. Given the foregoing, the allegation in the SOC that Respondent made the comment "you don't have to ask daddy" was not proven by a preponderance of the evidence.

81. The SOC alleges, Respondent called students "my girls." (Exhibit 1, p. A3, line 9.) Respondent admits he may have used that phrase, but it was "absolutely misinterpreted."

82. In her May 3, 2023 written statement, N [REDACTED] M. alleged Respondent "calls his female students 'my girls'." (Exhibit 34.) At hearing, N [REDACTED] M. testified that, once when she and another female student were walking instead of running laps, Respondent said, "Start running. I don't want anyone catching my girls." N [REDACTED] M. thought that comment was "not normal."

83. Respondent recalls using the phrase "my girls" once, when Ms. Carbajal's class was next to his on the track. Respondent saw some of his female students chatting with students from Ms. Carbajal's class, and the students have a limited time to complete their laps. Respondent believes he called, "My girls! Let's go!" He does not recall saying, "I don't want anyone catching my girls."

84. N [REDACTED] M.'s written statement and testimony regarding Respondent saying, "my girls" and the context in which it was made are viewed with skepticism. N [REDACTED] M.'s written statements and subsequent testimony are tainted by her potential motivation to preempt negative consequences of cheating in Respondent's running class. Consequently, N [REDACTED] M.'s testimony is less credible than Respondent's explanation of the context in which he used the phrase "my girls."

85. While the allegation in the SOC that Respondent called students "my girls" was proven by a preponderance of the evidence, Respondent credibly established the contextual propriety of the comment.

86. The SOC alleges Respondent called students "Slutty mouths." (Exhibit 1, p. A3, line 8.) The SOC also alleges Respondent "told 12th grade student M [REDACTED] A. that she had a 'slutty mouth' when she cursed in class." (Exhibit 1, p. A4, lines 6-7.) The SOC further alleges Respondent told L [REDACTED] S. "she had a 'slutty mouth.'" (Exhibit 1, p. A4, line 11.) Although alleged separately, all the allegations pertain to one occurrence, and the comment was directed at a group of students.

87. In her March 12, 2023 written statement, L [REDACTED] S. alleged Respondent would "tell us we have 'slutty mouths' if we say bad words." (Exhibit 47.) She did not explain it was just a single occurrence.

88. In her testimony at hearing, L [REDACTED] S. first testified she “had friends who would say bad words sometimes, and he said we have slutty mouths.” However, she later clarified Respondent said that to her and her friends “once” when Respondent overheard a conversation among them.

89. Written statements submitted by V [REDACTED] P. on May 4, 2023, and by M [REDACTED] A. on May 11, 2023, confirmed Respondent used the phrase just once. (Exhibits 40, 45.) Additionally, V [REDACTED] P.’s statement noted Respondent’s comment did not single out a specific student or students, but that Respondent “called a group of girls slut[t]y mouths because they were say[ing] bad words.” (Exhibit 40.)

90. Respondent admitted using the phrase once, directed toward a group of students, and he acknowledged it was inappropriate language. However, Respondent credibly explained the circumstances prompting his choice of words.

91. Respondent recalled his class was on the softball field, with most of his students sitting in front of him, and a group of six students off to the side talking loudly. Respondent was giving his class instructions when he heard one of the side-group students loudly use “the F-bomb and the C-bomb.” (Respondent’s euphemisms to avoid using the actual words in testimony.) Respondent tells his students not to use profanity in his class because it might make other students uncomfortable.

92. Upon hearing the loud profanity, Respondent could not determine which student used it, so he said, “Whoever said that, please apologize to the class. You are not in trouble, but it may be offensive to some people.” The side-group students looked at each other and giggled. Respondent said, “Let me say again. You are not in trouble, but that language is offensive for some people including me, so apologize.” Once again, there were giggles and then silence. Respondent felt the tension on the

softball field, and he believed if he were unable to gain control of his class, the effect could be long-lasting, so he made the decision to try to trigger a discussion or admission. He said, "Whoever has the slutty mouth, please knock it off. It is offensive."

93. Respondent admits his decision to use the provocative phrase "wasn't the greatest." At that point, the side-group students protested, saying "You can't say that! You can't say she has a slutty mouth! That is wrong!" Respondent told them he did not know who used the profanity, and then he asked them if they were more offended by his use of the word "slutty" than they were by the profanity the student used. He was baffled that the students weren't offended by the "higher level vulgarity" from their friend but were offended by the adjective from their teacher who was trying to keep control of the class. Respondent apologized if anyone was offended, and he was able to resume control of the class.

94. The allegation in the SOC that Respondent used the words "slutty mouth" was proven by a preponderance of the evidence. However, Respondent credibly established the contextual propriety of the comment, which was limited to one occurrence, directed at a group of students, and intended to chastise an unknown speaker's use of profanity.

95. The SOC alleges that Respondent made the following additional comments: "Over-weight people can't run;" "You look Mexican," after the student told him she didn't speak Spanish; "The way they walk will get them kidnapped one day;" complained about Mexicans coming into this country, taking jobs, and that they should go back to their own country, and how he liked Donald Trump; said to ninth grade student D [REDACTED] A. that she should "go back to the kitchen," she's "not worth coming to P.E.," and he only wanted the best for her, he loved her, and she's smart; and he told D [REDACTED] A., "I love you." (Exhibit 1, pp. A3, lines 1-3, 5-6, 24-28; A4, lines 1-

3.) No evidence was produced to prove these allegations. Consequently, these allegations were not proven by a preponderance of the evidence.

ALLEGED TOUCHING OF STUDENTS

96. The SOC alleges that Respondent "repeatedly poked ninth grade student D■■■■ A. in the stomach while speaking to her" and he once put his hands on her shoulders. (Exhibit 1, pp. A3, lines 21-23, A4, lines 3-4.) No evidence was produced to prove these allegations. Consequently, these allegations were not proven by a preponderance of the evidence.

97. The SOC alleges Respondent inappropriately touched three female students: K■■■■ A., M■■■■ A., and N■■■■ M. Respondent denied inappropriately touching any student.

98. The SOC alleges, while in class, Respondent "stood leaning over ninth grade student K■■■■ A. and held her arms while she was using the exercise equipment." (Exhibit 1, p. A3, lines 10-12.) Respondent denies this allegation.

99. K■■■■ A. did not testify at the hearing. Other Period 1 students, E■■■■ M., N■■■■ M., and M■■■■ A., testified at the hearing, but they did not specify how Respondent touched K■■■■ A. E■■■■ M.'s written statement (Exhibit 30), alleging Respondent touched K■■■■ A.'s "upper hand/arm" while she was using the "pull down machine" in the weight room was admitted only as administrative hearsay to supplement or explain other admissible evidence. (See footnote 1.) However, no other direct evidence to establish that fact was admitted, and E■■■■ M.'s written statement was not considered.

100. Respondent does not recall ever touching K█████ A. while she was using the weight equipment.

101. For the weight room unit of his PE class, Respondent personally demonstrated the exercises, and he tried to avoid exercises that required spotting. For the exercises that required spotting, Respondent demonstrated the proper way to spot. During the weight sessions, Respondent sat at his desk and answered questions if students approached him. Respondent never spotted students. However, if he saw a student performing an exercise in an unsafe manner, he would approach them and provide verbal instructions on how to correct their form. At most he would touch someone's elbow to correct their form during an improper triceps press, where the student's elbows should be tight by their sides. However, Respondent rarely had to correct their technique.

102. Given the foregoing, the allegation in the SOC that Respondent "stood leaning over ninth grade student K█████ A. and held her arms while she was using the exercise equipment" was not proven by a preponderance of the evidence.

103. The SOC alleges Respondent "placed his hands on the waist of ninth grade student M█████ A. to position her during a volleyball lesson in class." (Exhibit 1, p. A3, lines 13-15.) Respondent denies this allegation.

104. In her May 3, 2023 statement, M█████ A. alleged, "We were playing volleyball and Mr. Loperena put his hands on my waist for a moment so he could move himself." (Exhibit 33.)

105. In her testimony, M█████ A. explained Respondent on her team, and he was standing behind her during a volleyball game, when he "grabbed" her waist for "maybe a second," and moved her "to the side a little bit." According to M█████ A.,

Respondent said, "Good job." M█████ A. believed Respondent was congratulating her for hitting the ball over the net. M█████ A. testified she did not report this before May 3, 2023, because she did "not think it was that big a deal," or that anything would be done about it.

106. At hearing, Respondent insisted he would never put his hands on a female student's waist. Respondent typically does not play volleyball with his students. He recalls playing volleyball with the students once during the 2022-2023 school year, when two adaptive PE students were on his team. However, Respondent insisted that, during that volleyball game, he did not touch any of the students.

107. M█████ A.'s written statement and subsequent testimony are tainted by her potential motivation to preempt negative consequences of cheating in Respondent's running class. Consequently, M█████ A.'s testimony was less credible than Respondent's regarding whether Respondent touched her waist during a volleyball game.

108. Given the foregoing, the allegation in the SOC that Respondent "placed his hands on the waist of ninth grade student M█████ A. to position her during a volleyball lesson in class" was not proven by a preponderance of the evidence.

109. However, if the touching somehow occurred during the volleyball game while Respondent was moving around the court, the totality of the evidence indicates it was likely inadvertent.

110. The SOC alleges Respondent "did the following to ninth grade student N█████ M. during a soccer lesson in class: touched her shoulder and lower back, and moved his hand down her arms." (Exhibit 1, p. A3, lines 16-20.) (The SOC incorrectly identifies N█████ M. as "N█████ M.") Respondent denies this allegation.

111. In her May 3, 2023 written statement, N [REDACTED] M. alleged, "once while playing soccer [and] I was the goalie, he was 'positioning' me and it felt very uncomfortable. . . . Positioning - He was grabbing my lower shoulder [and] standing really close to me from behind [and] his hands would slide up [and] down my arms [and] close to the middle of my back." (Exhibit 34.)

112. At hearing, N [REDACTED] M. testified that, while playing soccer, she was positioned as goalie in front of a small pop-up goal, but "not taking the game serious." Respondent came from behind her and "grabbed" both of her shoulders and upper arm "no longer than 10 seconds." He "barely moved her" to change her positioning. In her testimony, N [REDACTED] M. did not assert Respondent touched her lower back or that he slid his hands down her arms.

113. S [REDACTED] R.'s May 12, 2023 written statement was admitted as administrative hearsay. (See footnote 1.) S [REDACTED] R. did not testify at the hearing.) In her statement, S [REDACTED] R. opined, "I do find it a little bit weird that he touches people on the shoulder or lower back but it is very rare, and I don't think that it comes out in that kind of way." (Exhibit 48.) S [REDACTED] R.'s statement did not provide specifics about the touching (dates, students involved, or their gender), and she did not indicate whether she personally witnessed the touching or whether she learned about it through other students. Moreover, S [REDACTED] R. was in Respondent's Period 4 class, not in Period 1 with N [REDACTED] M, and it is unlikely she witnessed the event N [REDACTED] M. asserts occurred during the soccer session. Consequently, S [REDACTED] R.'s written statement was given no weight.

114. Respondent denied touching N [REDACTED] M. during any soccer session. He was typically off the field supervising and telling students to get moving when they were standing around talking. He denied positioning students during soccer. His goal

was to keep the students moving and playing rather than getting tied up in proper positioning.

115. N [REDACTED] M.'s written statement and subsequent testimony are tainted by her potential motivation to preempt negative consequences of cheating in Respondent's running class. Consequently, N [REDACTED] M.'s testimony was less credible than Respondent's regarding whether Respondent grabbed her shoulders to reposition her during a soccer session.

116. Given the foregoing, the allegations in the SOC that Respondent touched N [REDACTED] M.'s "shoulder and lower back, and moved his hand down her arms," was not proven by a preponderance of the evidence.

Respondent's Additional Evidence

117. Respondent has no record of prior discipline with the District.

118. Respondent agrees with District policies about the appropriate and respectful treatment of students, and he insists he followed the policies.

119. Respondent believes the JFKHS PE department is "extremely prudent," and "if one teacher did anything stupid, none of [them] is shy about saying what [they are] thinking." Respondent has not seen any JFKHS PE teacher engage in an inappropriate behavior, and he insists, "nobody has seen it from [him]."

120. Respondent has the support of his PE Department Chair, Mr. Kanemura, and his colleagues, Ms. Carbajal and Mr. Thomson. They all confirmed they have never seen Respondent put his hands on a student, make inappropriate comments in front of students, or sitting inappropriately in front of students.

121. Several students submitted written statements indicating they never witnessed Respondent touching students or acting inappropriately. (Exhibits 50, B, C, D, E, F, G, H, and I.)

LEGAL CONCLUSIONS

Jurisdiction

1. The Commission has jurisdiction to proceed in this matter pursuant to Education Code section 44944. (Factual Findings 1 through 5.)

Burden of Proof

2. The District has the burden of proof in this matter since it is seeking to dismiss Respondent from employment as a certificated employee. The standard of proof is preponderance of the evidence. (*Gardiner v. Commission on Professional Competence* (1985) 164 Cal.App.3d 1035, 1040.)

Causes for Dismissal

PERSISTENT VIOLATION OF REASONABLE REGULATIONS OF THE DISTRICT

3. Education Code section 44932, subdivision (a)(8), provides grounds for dismissal of a teacher based on "Persistent violation of or refusal to obey the school laws of the state or reasonable regulations prescribed for the government of the public schools by the state board or by the governing board of the school district employing him or her."

4. To dismiss a teacher under Education Code section 44932, subdivision (a)(8), for violations of law or school rules, the violations must be either "persistent" or

"motivated by an attitude of continuous insubordination." (*Gov. Board of Oakdale Union School District v. Seaman* (1972) 28 Cal.App.3d 77, 81.) The word "persistent" has been interpreted to mean "stubborn" or "continuing or constant." (*San Dieguito Union High School District v. Commission on Professional Competence* (1985) 174 Cal.App.3d 1176, 1183; *Governing Board of the Oakdale Union School District v. Seaman* (1972) 28 Cal.App.3d 77, 82 (*Seaman*).) Additionally, a single violation of a school board's rules is insufficient cause for dismissal; it is the persistent disregard of school rules that the law is designed to regulate. (*Seaman*, 28 Cal.App.3d at p. 84.)

5. There was no evidence that Respondent engaged in the persistent violation of Board policies.

6. No cause for dismissal of Respondent exists under Education Code section 44932, subdivision (a)(8), for persistent violation of the reasonable regulations prescribed for the government of the public schools by the governing board of the District. (Factual Findings 1 through 121; Legal Conclusions 3 through 5.)

WILLFUL REFUSAL TO PERFORM REGULAR ASSIGNMENTS

7. Education Code section 44939 provides grounds for dismissal of a teacher based on "willful refusal to perform regular assignments without reasonable cause, as prescribed by reasonable rules and regulations of the employing school district."

8. To dismiss a teacher for "willful refusal to perform regular assignments without reasonable cause, as prescribed by reasonable rules and regulations of the employing school district," the teacher's refusal to perform his regular assignment must have been "willful." In the context of a public employee's insubordination or "willful" misconduct, the term insubordination "carries a volitional coloration which

excludes the notion of accidental or even negligent conduct. . . [and] insubordination, equally with willful misconduct, requires proof of intent or willfulness. The latter elements imply that the person knows what he is doing and intends to do what he is doing." (*Coomes v. State Personnel Bd.* (1963) 215 Cal. App. 2d 770, 775.)

Consequently, a willful refusal to perform a regular assignment must be more than an unsatisfactory, unprofessional, negligent, or even persistent failure to perform a regular assignment. Instead, it must be an intentional, volitional refusal to perform any part of a regular assignment.

9. There was no evidence that Respondent willfully refused to perform regular assignments without reasonable cause, as prescribed by reasonable rules and regulations of the employing school district.

10. No cause for dismissal of Respondent exists under Education Code section 44939, based on willful refusal to perform regular assignments without reasonable cause as prescribed by reasonable rules and regulations of the District. (Factual Findings 1 through 121; Legal Conclusions 7 through 9.)

UNSATISFACTORY PERFORMANCE

11. Education Code section 44932, subdivision (a)(5), provides grounds for dismissal of a teacher based on unsatisfactory performance.

12. "Unsatisfactory Performance" connotes "incompetency." (See *Perez v. Commission on Professional Competence* (1983) 149 Cal.App.3d 1167, 1175-1176.)

13. There was no evidence that Respondent engaged in unsatisfactory performance.

14. No cause for dismissal of Respondent exists under Education Code section 44932, subdivision (a)(5), for unsatisfactory performance. (Factual Findings 1 through 121; Legal Conclusions 11 through 13.)

IMMORAL CONDUCT

15. Education Code section 44932, subdivision (a)(1), provides grounds for dismissal of a teacher based on immoral conduct.

16. "'Immoral' [conduct] has been defined generally as that which is hostile to the welfare of the general public and contrary to good morals. Immorality has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare." (*Board of Education of the San Francisco Unified School District v. Weiland* (1960) 179 Cal. App.2d 808, 811 (*Weiland*).)

17. "Immoral conduct" has been compared to moral turpitude, which "is sometimes used synonymously with 'dishonesty' or a high degree of unfairness." (*Weiland*, 179 Cal.App.2d 808, 811.)

18. The District did not establish Respondent engaged in immoral conduct (i.e., conduct "showing moral indifference to the opinions of respectable members of the community," and "inconsiderate attitude toward good order") when he used the terms "my girls" or "slutty mouths," given the context in which they were used.

19. No cause for dismissal of Respondent exists under Education Code section 44932, subdivision (a)(1), based on immoral conduct. (Factual Findings 1 through 121; Legal Conclusions 15 through 18.)

UNPROFESSIONAL CONDUCT

20. Education Code section 44932, subdivision (a)(2), provides grounds for dismissal of a teacher based on unprofessional conduct.

21. "Unprofessional conduct" as used in Education Code section 44932, subdivision (a)(2), may be defined as conduct which violates the rules or ethical code of a profession or is such conduct that is unbecoming of a member of a profession in good standing. (*Board of Education v. Swan* (1953) 41 Cal.2d 546, 553.)

22. The District did not establish Respondent engaged conduct unbecoming of a teacher in good standing when he used the terms "my girls" or "slutty mouths," given the context in which they were used.

23. No cause for dismissal of Respondent exists under Education Code section 44932, subdivision (a)(2), based on unprofessional conduct. (Factual Findings 1 through 121; Legal Conclusions 20 through 22.)

EVIDENT UNFITNESS FOR SERVICE

24. Education Code section 44932, subdivision (a)(6), provides grounds for dismissal of a teacher based on evident unfitness for service.

25. "Evident unfitness for service" as used in Education Code section 44932, subdivision (a)(6), has been defined by the Court in *Woodland Joint Unified School*

Dist. v. Commission on Professional Competence (1992) 2 Cal.App.4th 1429, 1444-1446, as follows:

“Evident unfitness for service” . . . means “clearly not fit, not adapted to[,] or unsuitable for teaching, ordinarily by reason of temperamental defects or inadequacies.”
[Footnote.] Unlike “unprofessional conduct,” “evident unfitness for service” connotes a fixed character trait, presumably not remediable merely on receipt of notice that one’s conduct fails to meet the expectations of the employing school district. [¶] . . . [¶]

Our conclusion does not mean that the criteria for unfitness set out in *Morrison v. State Board of Education* [(1969) 1 Cal.3d 214] . . . may be disregarded where “evident unfitness for service” is at issue. These criteria must be analyzed to determine, as a threshold matter, whether the cited conduct indicates unfitness for service. (*Board of Education v. Jack M.* (1977) 19 Cal.3d 691, 696.) If the *Morrison* criteria are satisfied, the next step is to determine whether the “unfitness” is “evident”; i.e., whether the offensive conduct is caused by a defect in temperament.

26. In this case, Respondent used the terms “my girls” or “slutty mouths,” but credibly explained the context in which they were used. There was no evidence Respondent has a non-remediable defect in temperament or character that demonstrates his “evident unfitness for service.”

27. No cause for dismissal of Respondent exists under Education Code section 44932, subdivision (a)(6), based on evident unfitness for service. (Factual Findings 1 through 121; Legal Conclusions 24 through 26.)

Analysis of Respondent's Fitness to Teach

28. In order to dismiss a teacher for immoral conduct, unprofessional conduct, or dishonesty, the teacher's conduct must indicate the teacher is unfit to teach. (*Morrison v. State Board of Education* (1969) 1 Cal.3d 214 (immoral conduct must indicate an unfitness to teach); *Perez v. Com. on Professional Competence* (1983) 149 Cal.App.3d 1167, 1174 (unprofessional conduct must also indicate an unfitness to teach); *Fontana Unified School District v. Burman* (1988) 45 Cal.3d 208, 220, fn. 12 (dishonesty must also indicate a teacher's unfitness to teach).)

29. The Commission has broad discretion to determine what constitutes unfitness to teach. (*California Teachers Ass'n v. State of California* (1999) 20 Cal.4th 327.)

30. In analyzing fitness to teach, it must be kept in mind that a teacher is regarded as a role model for students, as noted by several courts:

"The calling (of a teacher) is so intimate, its duties so delicate, the things in which a teacher might prove unworthy or would fail are so numerous that they are incapable of enumeration in any legislative enactment. His habits, his speech, his good name, his cleanliness, the wisdom and propriety of his unofficial utterances, his associations, all are involved. His ability to inspire children and to govern them, his power as a teacher, and the

character for which he stands are matters of major concern in a teacher's selection and retention." (*Board of Education v. Weiland*, 179 Cal.App.2d 808, [. . .] citing from *Goldsmith v. Board of Education*, 66 Cal.App.157, 168[.])

There are certain professions which impose upon persons attracted to them responsibilities and limitations on freedom of action which do not exist in regard to other callings. Public officials such as judges, policemen and schoolteachers fall into such a category.

As between a teacher and his student, "(a)n important part of the education . . . is the instilling of a proper respect for authority and obedience to necessary discipline. Lessons are learned from example as well as from precept." (*Johnson v. Taft School Dist.*, 19 Cal.App.2d 405, 408, 65 P.2d 912.) And as our Supreme Court said in *Board of Education v. Swan*, 41 Cal.2d 546, at 552 [. . .], "A teacher . . . in the public school system is regarded by the public and pupils in the light of an exemplar, whose words and actions are likely to be followed by the (students) coming under his care and protection."

(*Board of Trustees v. Stubblefield* (1971) 16 Cal.App.3d 820, 824-825; *San Diego Unified School Dist. v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, 1463-1464.)

31. As set forth in *Morrison v. State Board of Education* (1969) 1 Cal.3d 214 (*Morrison*), a teacher's conduct cannot be abstractly characterized as "immoral," or "unprofessional," thus warranting discipline, "unless that conduct indicates that [Respondent] is unfit to teach." (*Id.* at 229.) *Morrison* enumerates eight criteria for analysis of whether a teacher is unfit to teach. Not all *Morrison* factors must be met for the *Morrison* test to be satisfied. (*Governing Board v. Haar* (1994) 28 Cal.App.4th 369.) It is sufficient when the most pertinent *Morrison* factors have been considered. (*West Valley-Mission Community College Dist. v. Concepcion* (1993) 16 Cal.App.4th 1766, 1777.) Moreover, the *Morrison* analysis need not be conducted on each individual fact established, but rather can be applied to the accumulated facts established collectively. (*Woodland Joint Unified School Dist. v. Commission on Professional Competence* (1992) 2 Cal.App.4th 1429, 1457.)

32. In this case, the *Morrison* criteria need not be applied, as immoral conduct and unprofessional conduct were not established as grounds for dismissal. Nevertheless, application of the *Morrison* criteria serves to confirm Respondent's fitness to teach.

33. The first factor enumerated by *Morrison* is "the likelihood that the conduct may have adversely affected students, fellow teachers, or the educational community, and the degree of such adversity anticipated." (*Morrison, supra*, 1 Cal.3d at p. 229.) There was no evidence that Respondent's use of the terms "my girls" or "slutty mouths," in the context they were used, adversely affected students, fellow teachers, or the educational community.

34. The second factor enumerated by *Morrison* is "the proximity or remoteness in time of the conduct." (*Morrison, supra*, 1 Cal.3d at p. 229.) Respondent's

use of the terms “my girls” or “slutty mouths” occurred during the 2022-2023 school year, about two years ago.

35. The third factor enumerated by *Morrison* is “the type of credential held by the person involved.” (*Morrison, supra*, 1 Cal.3d at p. 229.) Respondent holds a credential authorizing him to teach PE to grades 9 through 12.

36. The fourth factor enumerated by *Morrison* is “the extenuating or aggravating circumstances surrounding the conduct.” (*Morrison, supra*, 1 Cal.3d at p. 229.) In this case, Respondent explained the circumstances for his comments.

37. The fifth factor enumerated by *Morrison* is “the praiseworthiness or blameworthiness of the motives resulting in the conduct.” (*Morrison, supra*, 1 Cal.3d at p. 229.) There is nothing praiseworthy or blameworthy about Respondent’s conduct.

38. The sixth factor enumerated by *Morrison* is “the likelihood of the reoccurrence of the questioned conduct.” (*Morrison, supra*, 1 Cal.3d at p. 229.) In this case, Respondent recognizes the potential impropriety of the phrase he used (i.e., “slutty mouths”). Consequently, there is a low likelihood of recurrence.

39. The seventh factor enumerated by *Morrison* is “the extent to which disciplinary action may inflict an adverse impact or chilling effect upon the constitutional rights of the teacher involved or other teachers.” (*Morrison, supra*, 1 Cal.3d at p. 229.) In this case, there is no evidence that disciplinary action would inflict an adverse impact or chilling effect on Respondent’s or other teachers’ constitutional rights.

40. The last factor enumerated by *Morrison* is “the publicity or notoriety given to the conduct.” (*Morrison, supra*, 1 Cal.3d at p. 229.) As noted by the Court in

Board of Trustees v. Stubblefield, supra, 16 Cal.App.3d at p. 826, a teacher may be discharged where his conduct “has gained sufficient notoriety so as to impair his on-campus relationships.” In this case, there is no evidence of publicity and notoriety of Respondent’s comments.

41. Analysis of Respondent’s conduct applying the *Morrison* criteria does not establish Respondent’s unfitness to teach. (Factual Findings 1 through 121; Legal Conclusions 28 through 40.)

Disposition

42. The District failed to establish any cause for Respondent’s dismissal from employment.

ORDER

Respondent, Donald Loperena, shall not be dismissed from employment.

DATE: 04/21/2025


Ray Alcala (Apr 21, 2025 19:00 PDT)

RAY ALCALA

Commission Member

DATE: 04/21/2025


Mark David Hanke (Apr 21, 2025 21:13 PDT)

MARK HANKE

Commission Member

DATE: 04/22/2025



JULIE CABOS OWEN

Administrative Law Judge

Office of Administrative Hearings